Data Sharing

POLICY #HHS-COMP-DSPOR-004

Purpose

This policy establishes the process for sharing Iowa HHS Confidential and Restricted Data, both within and outside of Iowa HHS.

Scope and Coordination

This policy and procedure applies to all HHS employees, contracted employees, consultants, temporary staff, and other workers.

Roles and Responsibilities

1. Iowa HHS Bureau of Data Sharing, Privacy and Open Records
    a. Receive, review, record, provide approval, and coordinate approvals for all requests and applications for access to Iowa HHS Confidential and Restricted Data, both internal and external to Iowa HHS. Determine type of data request, legal parameters for data use and disclosure, and the need for a data sharing agreement or other formal agreement prior to data access or release.
    b. Review, record, and provide approval for all Iowa HHS contracts that obligate the sharing of or access to Iowa HHS Confidential or Restricted Data.
    c. Oversees completion and approval of Vendor Security Questionnaires for all sharing of or access to Iowa HHS Confidential and Restricted Data that is covered by the Health Insurance Portability and Accountability Act (HIPAA).
2. Information Security Bureau at Department of Management Division of Information Technology (DOM-DoIT)
    a. Review and approve requests for Restricted Data owned by federal agencies.
    b. Seek required approvals from federal agencies for the use and disclosure of Restricted Data owned by federal agencies.
3. Iowa HHS Employee
    a. Refer all requests for Iowa HHS Confidential Data to the Bureau of Data Sharing, Privacy, and Open Records.

   b. Ensure all data sharing arrangements, new and on-going, have appropriate approvals and meet all policy and legal requirements for sharing.
   c. Provide copies of all agreements that involve the exchange of data to the Iowa HHS Bureau of Data Sharing, Privacy, and Open Records for recordkeeping.
4. Iowa HHS Data Owners
   a. Assist Bureau of Data Sharing, Privacy, and Open Records with information gathering and reviews of data requests.
   b. Provide approval for use and disclosure of data under their responsibility.
5. Iowa HHS Supervisor
   a. Provide approval of all data sharing agreements that obligate data from under the responsibility of Data Owners that they oversee.
   b. Serve as signatory of all data sharing agreements that obligate data from under the responsibility of Data Owners that they oversee.

Definitions

1. Confidential Data: Data and information that are subject to any applicable State and federal laws and regulations, including, but not limited to, Iowa Code Chapter 22, any confidential or proprietary information or trade secrets disclosed by another party that, at the time of disclosure, is designated as confidential (or like designation), is disclosed in circumstances of confidence, or would be understood by the parties, exercising reasonable business judgment, to be confidential. Regardless of whether or not the following information is designated as confidential, the term Confidential Data includes information that could be used to identify recipients, subjects, or applicants of Agency services and recipients of Contract services including, but not limited to protected health information (PHI), personally identifiable information (PII), reportable disease information (Iowa Code § 139A.3, 641 IAC chapter 1), medical records (Iowa Code § 22.7(2)), immunization information (641 IAC 7.11), vital records information (Iowa Code § 144, 641 IAC 95), public health information, substance use treatment information(Iowa Code § 125.37 and 42 CFR Part 2), service recipient information (Iowa Code § 217.30), Agency security protocols and procedures, Agency system architecture, information that could compromise the security of the Agency network or systems, and information about the Agency's current or future competitive procurements, including the evaluation process prior to the formal announcement of results.
2. Data Custodian: The Iowa HHS employee who is in the position responsible for the safe custody, transport, and storage of the data. The Data Custodian is also responsible for the technical environment and database structure that hosts data.

The Data Custodian for Iowa HHS data may be indicated by statute (e.g., State Registrar of Vital Records).

3. Data Owner: The Iowa HHS employee who is in the position that is responsible for the dataset, as designated by the Supervisor and/or as indicated by statute. The Data Owner may authorize or deny access to certain data within Iowa HHS in accordance with procedures described herein. The Data Owner is responsible for timely response to data inquiries about their data.
4. Open Record: A record other than a confidential record as defined by applicable provisions of law.
5. Restricted Data: Data and Information that must receive the highest level of safeguarding within the agency. These data types include:
    a. Protected Health Information (PHI) governed by the HIPAA Privacy and Security Rules.
    b. Data received from the Internal Revenue Service (IRS), Social Security Administration (SSA), Office of Child Support Services (OCSS) – National Directory of New Hires (NDNH) and Federal Parent Locator Service (FPLS), and the Federal Bureau of Investigation (FBI). In these instances, the federal agency maintains ownership of the data provided to Iowa HHS. Additional safeguards apply as required by the source of the data. Access to and re-disclosure of this information is governed by federal laws and regulations. Applicable penalties for unauthorized access and disclosure as stated in federal laws and regulations apply.
    c. Data and records involving HIV/AIDS, Domestic Abuse Death Review Team, Child Death Review Team, Maternal Mortality Review Committee, and social security numbers maintained within vital records.
6. Vendor Security Questionnaire (VSQ): Questionnaire to be completed by vendors when contracts include Business Associate Agreement (BAA) or when required by the business unit.

Policy

All sharing of or access to Iowa HHS Confidential and Restricted Data with individuals outside the program for which the data were collected (as defined by function and legal authority) shall be reviewed by the Bureau of Data Sharing, Privacy, and Open Records, the Data Owner for the dataset being shared, and the Supervisor of the Data Owner per this policy. Additionally, Data Owners shall follow any applicable division procedures to ensure supervisory chains are informed of proposed data sharing agreements. Data sharing includes, but is not limited to, requests from other programs within Iowa HHS, contractors, other state agencies, and federal funders.

1. All sharing of or access to Iowa HHS Confidential and Restricted Data that is covered by the Health Insurance Portability and Accountability Act (HIPAA) shall

be reviewed by the HIPAA Security Officer within the Bureau of Data Sharing, Privacy, and Open Records via RERC@hhs.iowa.gov. A current VSQ is also needed.

2. Restricted Data that is owned by a federal agency shall also be approved by the Information Security Bureau at DOM-DoIT.
3. All requests for Iowa HHS to enter into a data sharing agreement to receive data from outside Iowa HHS shall be reviewed by the Bureau of Data Sharing, Privacy, and Open Records prior to Iowa HHS signature.
4. All Iowa HHS programs responsible for a dataset or data source that contains Confidential or Restricted Information shall provide the name and contact information of a Data Owner(s) to the Bureau of Data Sharing, Privacy, and Open Records. Data Owners shall be approved by the Supervisor overseeing the Data Owner and dataset in question.
5. All requests for data that are identified by the requestor as an Open Records request shall first follow the Iowa HHS Request for Public Records Policy located in the Iowa HHS Policy Library on the HHS intranet.

Procedure

Identify type of Data Request

1. The Iowa HHS staff person receiving a data request must first determine the type of data being requested.
    a. Non-confidential, public data. Disclosure of this information is not restricted by Iowa HHS data sharing or confidentiality policies, state or federal laws, or other regulations.
    b. Confidential or Restricted Data that cannot be released without legal authorization, approvals, or agreements.
    c. If unsure of type of request, contact Iowa HHS Bureau of Data Sharing, Privacy, and Open Records at RERC@hhs.iowa.gov for assistance.

Sharing Non-Confidential Public Data

1. If requested data are non-confidential and can be made public, the data request falls outside the scope of this policy. Staff should follow any other agency policies or division procedures related to releasing information. NOTE: If Iowa HHS data are already publicly available, but an Iowa HHS staff person believes it should not be due to confidentiality concerns, contact the Bureau of Data Sharing, Privacy, and Open Records for assistance.

Sharing Confidential Data Through a Contract

1. Data sharing necessary to complete the work and services of a contract may generally be included within the contract and routed through the service contracting approval process. For more information about the service contracting process, see the Service Procurement and Contracting Policy located in the Iowa HHS Policy Library located on the HHS intranet. In these cases, terms to protect the data and authorize the sharing will generally be placed within the contract document. The Iowa HHS staff person responsible for drafting the contract should send the contract document to the Bureau of Data Sharing, Privacy, and Open Records at RERC@hhs.iowa.gov along with a description of the type of data being shared.
2. The Bureau of Data Sharing, Privacy, and Open Records will review the contract language, ensure all appropriate terms are added, and confirm the legality of the sharing. If the contract involves the sharing of or access to Iowa HHS Confidential and Restricted Data that is covered by the Health Insurance Portability and Accountability Act (HIPAA), the HIPAA Security Officer within the Bureau of Data Sharing, Privacy, and Open Records will review and provide guidance on the completion or updating of a VSQ.
3. The Bureau of Data Sharing, Privacy and Open Records will coordinate any other input or approvals needed from other agency teams specific to data sharing aspects of the contract.
4. The Bureau of Data Sharing, Privacy, and Open Records will record the sharing, assign a tracking number, and provide an approval email to the Iowa HHS staff person drafting the contract.
5. Iowa HHS staff must contact and engage the Bureau of Data Sharing, Privacy, and Open Records staff in any contract negotiations of data-related terms. This includes the following sections of the Iowa HHS General Conditions and Contingent Terms: definitions for confidential information or deliverables, 2.5, 5.6, 2.8, 2.9.4, 2.12.9, 2.12.25.2, 2.12.25.3, 2.12.36, 3.2, 3.3.

Sharing Confidential Data Through a Data Sharing or Research Agreement

Refer data requestor to Iowa HHS Bureau of Data Sharing, Privacy, and Open Records to RERC@hhs.iowa.gov as early in the project as possible.

Sharing Confidential or Restricted Data External to Iowa HHS

1. The Iowa HHS Bureau of Data Sharing, Privacy, and Open Records shall direct data requestor to complete the Iowa HHS Application for Data Sharing found in the HHS Forms Library.

2. Data requestors shall submit completed application and any supporting materials (for example, Institutional Review Board (IRB) approvals, letters of support, grant applications) to RERC@hhs.iowa.gov.
3. The Bureau of Data Sharing, Privacy, and Open Records shall confirm receipt and review application for completeness. If application is not complete, Bureau of Data Sharing, Privacy, and Open Records will return application to applicant and request additional information.
4. Once the application is complete, the Bureau of Data Sharing, Privacy, and Open Records will send to Data Owner for their awareness and review. Data Owner should consult program staff and supervisors as appropriate and provide any concerns or needs for clarification to Bureau of Data Sharing, Privacy, and Open Records, generally within 10 business days.
5. Bureau of Data Sharing, Privacy, and Open Records will review completed application, along with input from Data Owner, and seek clarification from data requestor as necessary. Bureau of Data Sharing, Privacy, and Open Records will provide approval, denial, or recommendation to make changes based on legal authority and other regulations and requirements.
    a. If approved, Bureau of Data Sharing, Privacy, and Open Records will then draft data sharing agreements and research agreements pursuant to the Research Policy found in the HHS Policy Library located on the HHS intranet. When sharing Iowa HHS data through a data sharing agreement or research agreement, Iowa HHS agreement templates shall be used unless approval for use of a different template is granted by the Bureau of Data Sharing, Privacy, and Open Records. The Bureau of Data Sharing, Privacy, and Open Records will send complete agreement to Data Owner via email for Data Owner approval.
    b. If denied, the Bureau of Data Sharing, Privacy, and Open Records will send an email with decision to Data Owner and data requestor.
    c. If changes are needed prior to granting approval, the Bureau of Data Sharing, Privacy, and Open Records will communicate this to the data requestor and Data Owner and provide opportunity for data requestor to make changes to request. After return of revised application, repeat steps 1-5 above.
6. Data Owner approves, denies, or requests changes via email response to Bureau of Data Sharing, Privacy, and Open Records. If denied, provides reasoning to be recorded with the Bureau of Data Sharing, Privacy, and communicated to data requestor.
7. If approved by Data Owner, Bureau of Data Sharing, Privacy, and Open Records routes to the Supervisor of Data Owner for approval, consistent with the Signing Authorities Policy.

8. Following Supervisor approval, the Bureau of Data Sharing, Privacy, and Open Records will send the agreement to the data requestor for signature.
9. The Bureau of Data Sharing, Privacy, and Open Records will negotiate agreement terms as needed.
10. Following return of signed agreement from applicant, the Bureau of Data Sharing, Privacy, and Open Records will route to the Supervisor for signature.
11. The Bureau of Data Sharing, Privacy, and Open Records will return the signed agreement to the data requestor.
12. The Bureau of Data Sharing, Privacy, and Open Records will then notify the Data Owner of agreement approval. Data Owner may then provide data to requestor in compliance with executed agreement.

Sharing Confidential or Restricted Data Internal to Iowa HHS

1. Iowa HHS staff person seeking Confidential or Restricted Data from another program (as defined by function and legal authority) within Iowa HHS may start the process in one of two ways:
    a. Begin filling out Section 1 of the Data Sharing Agreement Template located on the Data Sharing & Privacy intranet and email the form with as much information completed within Section 1 as feasible to RERC@hhs.iowa.gov. It is acceptable to submit a partially completed form.
    b. Reach out to the Bureau of Data Sharing, Privacy, and Open Records for assistance with completing the Data Sharing Template via RERC@hhs.iowa.gov.
2. The Bureau of Data Sharing, Privacy, and Open Records will work with data requestor to complete and finalize Section 1 of the Data Sharing Agreement Template. Data requestor shall provide all of the following to the Bureau of Data Sharing, Privacy, and Open Records to complete the Data Sharing Template:
    a. Data to be accessed or shared (including the type of data and the variables to be shared)
    b. Detailed purpose for the data sharing or access
    c. Description of those who will access the data through the Data Sharing Agreement Template.
3. Following completion of Section 1 of Data Sharing Template, the Bureau of Data Sharing, Privacy, and Open Records will contact the Data Owner and provide opportunity for feedback, clarifications, and concerns. Data Owner shall generally provide a response within 10 business days.
4. The Bureau of Data Sharing, Privacy, and Open Records will review request for legality and for compliance with existing agreements and Iowa HHS obligations. If request involves direct connection between Iowa HHS databases or system or

involves Restricted Data owned by federal agencies, the Bureau of Data Sharing, Privacy, and Open Records shall contact the Information Security Bureau at DOM-DoIT for review and approval.

5. The Bureau of Data Sharing, Privacy, and Open Records will draft Section 2 of Data Sharing Agreement Template based on dataset requirements.
6. The Bureau of Data Sharing, Privacy, and Open Records will send Data Sharing Agreement Template to Data Owner for approval via email.
7. If Data Owner approves, the Bureau of Data Sharing, Privacy, and Open Records will send to their Supervisor for approval and signature.
8. Following Supervisor approval, Bureau of Data Sharing, Privacy, and Open Records sends to data requestor for signature.
9. Bureau of Data Sharing, Privacy, and Open Records sends to data requestor Supervisor for signature.
10. Bureau of Data Sharing, Privacy, and Open Records documents and sends copy of completed Data Sharing Agreement to Data Owner, data requestor, and Data Custodians.

Amendment Request

1. Proposed amendments to Data Sharing Agreements or Memoranda may be requested at any time by submitting the request to the Bureau of Data Sharing, Privacy, and Open Records to RERC@hhs.iowa.gov.
2. The Bureau of Data Sharing, Privacy, and Open Records will communicate the request to the Data Owner and coordinate review and input of the request with relevant parties.
3. The Bureau of Data Sharing, Privacy, and Open Records will confirm and approve legal authority for the amendment.
4. The Bureau of Data Sharing, Privacy, and Open Records will work collaboratively with the data requestor to draft the amendment.
5. The Bureau of Data Sharing, Privacy, and Open Records will route agreement in the following order, in compliance with the Signing Authorities Policy located in the Iowa HHS Policy Library located on the HHS intranet.
    a. Data Owner(s) for approval
    b. Data Requestor for signature
    c. Data Requestor's Supervisor for signature (if internal agreement only)
    d. Data Owner's Supervisor for final signature

Management Commitment

This policy has been approved by the Director of Iowa HHS. Iowa HHS supervisors are responsible for ensuring staff are aware of and understand this policy and procedure.

Compliance with This Policy

1. Compliance measurement: The Compliance Division may verify compliance with this policy through various methods, including but not limited to, internal audits and information received by the Compliance Division, HHS Division Director or Human Resources.
2. Exceptions: Any exception to the policy shall be approved by the Compliance Division Director in advance.
3. Noncompliance: Violations of this policy are grounds for disciplinary action, up to and including termination.
4. Iowa HHS staff may be held civilly or criminally liable for improper use or disclosure of Confidential Information.

References

Not applicable.

Change Log

EFFECTIVE DATE	VERSION	AUTHOR	ACTION	SUMMARY OF CHANGES
04/15/2025	4	Kelsey Feller	Revised	• Updated definitions to align with other policies. • Removed specific references of terms such as “red box” and “green box” as that level of detail is not needed to align with the Signing Authority Policy. • Policy number changed per new Doc Control policy (from COMP23-010.2 to HHS-COMP-DSPOR-004).
06/28/2024	3		Revised	Technical change-updated email address
02/29/2024	2		Revised	Updated definitions. Revised to align with Signature Matrix.
09/06/2023	1		Approved	New HHS Policy

Review Log

REVIEW DATE	REVIEWED BY	NEXT REVIEW DATE
Jan – March 2025	HHS Operations Deputy Directors HHS Division Administrative Assistants	04/15/2028
06/28/2024	Sarah Reisetter	02/01/2025
02/29/2024	Teresa Hay McMahon Cassie Tracy	06/28/2024
09/06/2023	Executive Team	02/29/2024

Signature

This policy and procedure has been reviewed and approved by Sarah Reisetter, HHS Deputy Director and Chief of Compliance.

Sarah Reisetter Digitally signed by Sarah Reisetter
Date: 2025.04.02 12:22:04 -05'00'

HHS Deputy Director/Chief of Compliance Date